

26NWCV01001 26NWCV01001

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 26NWCV01001 Hearing Date: September 18, 2026 Dept: P

NALLELY CEBALLOS GARCIA v. SEAN T. WASSGREN

CASE NO.: 26NWCV01001

HEARING: 09/18/2026 @

9:30 AM

#13

TENTATIVE ORDER

I.

Plaintiff Nallely Ceballos Garcia's

motions to compel Defendant Sean T. Wassgren to provide responses to form interrogatories, set one and requests for production, set one are GRANTED.

II.

Plaintiff's request for monetary

sanctions is GRANTED in the amount of \$1,800 against Defendant only.

Moving party to give notice.

Plaintiff Nallely Ceballos Garcia (Plaintiff) moves to

compel Defendant Sean T. Wassgren (Defendant) to provide responses to (1) form interrogatories (FROGs), set one and (2) requests for production of documents (RPDs), set one.

Background

On March 19, 2026, Plaintiff filed this wrongful eviction action against Defendant and Does 1 through 30. The complaint alleges that Plaintiff signed a month-to-month rental agreement with Defendant to rent a private room in the single-family home located at 10609 Bexley Drive, Whittier, CA 90606 (Subject Premises). (Complaint, ¶ 13.) The complaint alleges that during Plaintiff's tenancy, Defendant repeatedly denied Plaintiff access to the kitchen or shared facilities and entered Plaintiff's private room while intoxicated and without notice. (Complaint, ¶¶ 16-17.) Despite being told to stop, the complaint alleges Defendant continued to harass and be racist to Plaintiff, ultimately leading to her alleged constructive eviction and service of a 30-day notice to quit. (Complaint, ¶¶ 19-23.)

The complaint asserts eight causes of action: (1) violation of the Tom Bane Civil Rights Act (Civ. Code, § 52.1); (2) intentional infliction of emotional distress; (3) constructive eviction; (4) retaliatory eviction; (5) violation of Civil Code § 1940.2—covenant of quiet enjoyment; (6) breach of the implied covenant of quiet enjoyment; (7) violation of Civil Code § 1950.5; and (8) intrusion into private affairs.

Legal Standard

Interrogatories

A party to whom interrogatories are propounded must respond within 30 days of service of the interrogatories. (Code Civ. Proc., § 2030.260.) If a party fails to serve a timely response, the party propounding interrogatories may move for an order compelling responses. (Code Civ. Proc., § 2030.290.) Additionally, “the party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290.)

Requests for Production

Under Code of Civil Procedure section 2031.260 subdivision (a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd.

(a.)

Discussion

Plaintiff moves to compel Defendant to provide responses to sets one of her FROGs and RPDs. These motions are unopposed.

Plaintiff served the subject discovery to Defendant on June 26, 2026. (Cohen Decls., ¶ 4.) After not receiving responses by July 29, 2026, Plaintiff's counsel inquired about the responses with defense counsel who stated that he would provide responses within a week. (Cohen Decls., ¶ 5.) Plaintiff further extended the deadline to provide responses to August 21, 2026. (Cohen Decls., ¶ 8.) As of the date Plaintiff filed these motions, Plaintiff had not received responses. (Cohen Decls., ¶ 10.)

Here, Plaintiff establishes that she properly served Defendant with the subject discovery and has not received responses despite receiving multiple extensions.

Accordingly, Plaintiff's motions to compel discovery responses to FROGs, set one and RPDs, set one are GRANTED.

Defendant is ORDERED to provide verified responses, without objections, to form interrogatories, set one and requests for production of documents, set one, within 30 days of this Order. This date may be extended pursuant to agreement between the parties.

Sanctions

Plaintiff moves for monetary sanctions against Defendant for the failure to provide responses. Plaintiff notes that defense counsel was responsive and unable to obtain responses from Defendant despite diligent efforts. (Cohen Decls., ¶ 8.)

Pursuant to Code of Civil Procedure sections 2030.290, subdivision (c) and 2031.300, subdivision (c) "[t]he court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories [or demand for production], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of

the sanction unjust.”

The Court finds monetary sanctions warranted against Defendant pursuant to the Code. Plaintiff requests \$1,560 for the RPDs motion reflecting Plaintiff's counsel's hourly rate of \$600 and 2.6 hours to prepare the motion. (Cohen Decl., ¶ 11.) Plaintiff requests \$1,380 for the FROGs motion reflecting Plaintiff's 2.3 hours to prepare the motion. (Cohen Decl., ¶ 11.) The Court finds this amount unreasonably excessive given that Plaintiff's counsel does not support his hourly rate in his declaration and based on the simplicity of the motions. The Court awards a total of three hours for the two motions.

Accordingly, Plaintiff's request for monetary sanctions is GRANTED in the amount of \$1,800 against Defendant.

Defendant is ORDERED to pay this amount within 30 days of this Order. This date may be extended pursuant to agreement between the parties.